

Charity legacies. — There has been much discussion in the Courts how far the rule establishing a distinction between a *charge upon* and *exception from* a devise is applicable to a charity legacy. The question is one of difficulty, and before stating the apparent result of the cases, it may be useful to premise a few words as to the principle.

Difference between exception from a devise, and charge upon a devise. — If a testator had, before the late Wills Act, devised an estate, worth 10,000*l.*, to trustees in trust to sell, and out of the proceeds to pay 1000*l.* to A., and had given all the residue of his real estate to B., and A. had died in the testator's lifetime, the lapse would have enured to the benefit not of the devisee, but of the heir-at-law; the reason was, that in real estate the word "residue" had not the same meaning as in personal estate, but each devise was [*156] *considered a specific one, and the 1000*l.* and the 9000*l.* were distinct fractions of the estate, so that if either failed in event, the undisposed of interest resulted to the heir-at-law. If, however, a testator had devised an estate to A. and his heirs *charged* with a legacy of 1000*l.* to B., and B. had died in the testator's lifetime, then A. would have taken the estate free from the legacy: not that the devisee was intended to take the legacy, *quâ* legacy, but the testator had constituted a *hæres factus* to the disinherison at all events of the heir-at-law, and as the legacy was given not directly to the legatee, in which case it would be an exception from the devise of the estate, but had been made a charge to be raised, so far as might be necessary, out of the estate previously devised, the legacy, as in the event it was not required to be raised, sunk for the benefit of the devisee.

Possible distinction in the case of a legacy to a charity. — Now in a devise to A. and his heirs charged with a legacy to a charity, on the one hand it may be said that in the case of an *ordinary* charge the lapse of the legacy is an incident to the bequest, which the testator may be taken to have contemplated, and he may have meant that on the occurrence of that event the devisee should be entitled; but in the instance of a *charity*, the object of the legacy *exists* at the testator's death, and the event on which the money was payable has